BENTELER
Automotive

Your supplier No: 2119179

NIHVA Technologies Pvt. Ltd
187, G-Block
1st Floor, Above Renault Showroom
Thermax Chowk, MIDC, Chichwad
411019 Pune
GST No. - 27AAECN0437H1ZM
Ph.No. - 020-66304030
Email id - info@nihva.com

Purchase order

PO number / date
0772/P05/40329945 POIM/31.12.2018
Telephone: +91 2135612201
Purchaser/Telephone ext./Fax ext.
Balkrish. Boddawar+91 2135612 276+91 2135612201
Email: balkrishan.boddawar@benteler.com
PO Valid from: 31.12.2018
PO Valid Upto: 31.12.2019

Please deliver to:
Company
BENTELER Automotive India Pvt Ltd
Plot No A3,Phase II,Chakan MIDC Ind Area
Chakan (Khalumbre)
410501 Tal. Khed, Pune-410501

Delivery date: Day 28.02.2019

Pan No: AADCB5251E
GST No.: 27AADCB5251E1ZZ

Terms of delivery: DAP Delivered at Benteler Chakan

Terms of payment: 100% Net 30 Days from the date of GRN

Currency INR

:
Reference to your quoation No. SQT 18-9.991 dated 29.11.2018

:
We will be unable to process any delivery or invoice document that does not state the relevant BENTELER Order or Schedule Agreement Number.
Our material no, material description,P.O no,Price & Tax information mentioned in the PO must be mentioned in your delivery challan/Invoice.
Note : For Terms & Conditions refer Overleaf
We require an order acknowledgment for the following items:

Item	Material	Description	HSN CODE	Order Quantity	Unit	Price Per Unit	Curr.	Net Price	Curr.
00010	20353214	ALBANY CAM Drive Unit D4801240		15	Piece	25,965.00	INR	389,475.00	INR
			CGST	9.00	%	2,336.85	INR	35,05	
INR		Tax	SGST	9.00	%	2,336.85	INR	35,05	

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Item	Material	Description	HSN CODE	Order Quantity	Unit	Price Per Unit	Curr.	Net Price	Curr.
INR									
			IGST	0.00	%	0.00	INR		INR
			Total value Inclusive of taxes			**30,638.70**	**INR**	**459,580.50**	
INR									
	Item Text:								

Total net value excl. tax INR 389475.00

Amount in Words: THREE LAKH EIGHTY NINE THOUSAND FOUR HUNDRED SEVENTY FIVE RUPEES ONLY

General Purchasing Terms and Contract Conditions

IF this Purchase Order / Scheduling Agreement is not acknowledged within 7 days of receipt, it will be consider as accepted by the seller.

1. Products

The subject matter/products will be manufactured/ made by the Seller as per the Purchase order signed by the parties. The Seller shall not use any other designs or/and specifications than those agreed by the parties or shall use design or/and specifications as may be mutually agreed upon by the parties in writing. The specification and drawings agreed upon by the parties will be strictly followed and the Seller shall not make or incorporate any changes or deviations to such agreed designs or specifications without the prior written approval from the Buyer. The Seller warrants that the subject matter/products shall conform in quality and safety norms as prescribed by law and as required by the Buyer. The Buyer shall retain title to such specifications, designs, drawings, engravings, models etc. The Seller shall be solely responsible for and shall take all necessary steps to ensure that the subject matter/ Products comply with all applicable Central Laws and State and Local Laws, rules and regulations prevailing in India. The Seller shall indemnify the Buyer in case of any claim, action or damages suffered by the Buyer due to the failure of the Seller to do so.

2. (Co-) ownership / passing of risk

The Buyer shall acquire ownership of subject matter of the contract with payment. The Buyer shall acquire co-ownership in the case of part payments. The proportion of co-ownership of the Buyer shall in this case correspond to the proportion of the purchase price paid by Buyer.

The Buyer shall be entitled at any time to pay the remaining purchase price immediately. This shall apply particularly in the following cases:

_ Application for the opening of insolvency proceedings concerning the assets of the contract party;
_ The Company of the contract party is liquidated;
_ Commencement of foreclosure by a third party in the subject matter of the contract;
_ Breach of this Contract by the contract party;

The Seller shall mark the name of the Buyer on the subject matter/ products ordered by the Buyer, whether finished or unfinished lying in the premises of the Seller or elsewhere so as to indicate the subject matter/ products as being the property of the Buyer i.e. BENTELER Automotive India Pvt. Ltd., in any event, a Receiver/Liquidator is appointed of the Seller, the subject matter/ products shall not be charged/encumbered by the Seller and the Seller shall ensure that the Receiver/Liquidator will not have a charge over the same.

Both parties shall agree that the sole ownership of the subject matter will belong to the Buyer from the placement of order. However,

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the Seller shall be responsible for any loss, damage or destruction to the subject matter/products until possession of the same passes to the Buyer. This is limited on delivery and acceptance to buyer or a prepayment of the buying price.
The Seller shall undertake to ensure Buyer's ownership and right of disposal to the subject matter of the contract and to refrain from any actions which may impair the ownership and/or right of disposal to the subject matter of the contract.
Should a creditor of the Seller enforce in the ownership of Buyer, then the Seller shall be obliged to notify the Buyer of this immediately.
The same shall apply in the event that application for the opening of insolvency proceedings concerning the assets of the Seller is made. The Seller shall bear the costs incurring to the Buyer in the safeguarding of their rights in this context.
Regardless of any passing of ownership, the risk regarding the subject matter of the contract shall pass to the Buyer subsequent to the final acceptance inspection.

3. Deliveries :

It is presupposed that the Seller agrees specifications and local conditions with the Buyer for the fulfillment of this order.
Delivery dates and project milestones shall be strictly followed by the parties. If the order is not completed in the specified agreed time, the Buyer will then be entitled to cancel the order or accept delivery of the subject matter. In the event of delay by the Seller, the Buyer will be entitled to claim liquidated damages from the Seller.
The Seller guarantees by the appropriate employment of his personnel the complete and professional execution of the order in time.
If it becomes foreseeable that the Seller will not fulfill his contractual obligations in time, he has to inform the Buyer immediately.
In such cases the Buyer has the right to implement actions himself or through third parties at Seller's expense in order to achieve the reduction of damage. The correctness of the performed work remains the responsibility of the Seller.
In such cases the costs for the work will be determined between the Buyer and Seller prior to their action, which in any event shall be paid by the Sellers.
If the range of this work cannot be defined exactly, the expenditure will be invoiced against single check (hourly wages). The performed hours are to be confirmed by signature on a daily base by the buyer's project leader.

4. Penalties

For each instance of the breach of the Contract by the Seller, the Seller shall pay liquidated damages to the Buyer, as quantified by the Buyer.
It is assumed that the Seller and the Buyer are aware of the project milestones without need for further reminder. The buyer has the right to make claim for liquidated damages without further notice of missed milestones.
In the event the Seller misses the agreed project milestones, the Buyer is entitled to deduct the liquidated damages from the agreed last installment payable to the Seller; in which case the Seller will be informed in writing.
If the supply and/or the actions to be performed by both the parties under this Contract are prevented by circumstances, which are the Buyers responsibility as per agreed minutes of negotiation and other signed agreements or Force Majeure events which include acts of God, war, riots or civil disturbance; the parties agree that no obligation of liquidated damages exists.
The supply and/or milestones are agreed & extended in this case for the duration of the delay.
The delay is to be indicated by the Seller immediately in writing. If this announcement is omitted, then special preventing circumstances, which are obviously well known by the Buyer, come into consideration.
If the preventing circumstances are in the responsibility of Buyer, no compensation for interest or lost profit will be paid in alternative
Without prejudice to other rights of the Buyer, the Buyer shall be entitled to recover additional costs and damages in procuring replacement of the subject matter/ products from any other supplier due to Seller¡¯s delay in delivering the subject matter/products and/or if the subject matter/ products ordered are not as per the requirement of the Buyer as agreed upon.

5. Insurance

The Seller shall take out at his own cost a Cost, Insurance and Freight (CIF) policy for the subject matter/ products to be manufactured under the Purchase Order. The seller will submit a copy of the CIF policy to the Buyer.

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6. IP Rights

The Seller declares that by delivery of the subject matter/ products no industrial and or intellectual property rights will be hurt. The Seller obliges himself to free the Buyer of all third-party claims, which might arise from infringements of industrial and or intellectual property rights. The Seller shall defend any suit or proceeding and hold the Buyer harmless against all claims, demand, cost or loss arising from any suit or proceeding brought against the Buyer based on a claim of infringement of industrial and or intellectual property rights owing to the use of the subject matter/ products by the Seller or its final clients and shall pay to the Buyer all damages and costs awarded therein.

7. Assignment

The Seller shall not assign the order without the written consent of the Buyer.

8. Termination

In the event of the Seller failing to comply with any terms and conditions of the Purchase Order or of any representations or warranties under the Contract, the Buyer shall be entitled by a written notice to the Seller and without prejudice to any other remedy available in equity and law to terminate/cancel the order in whole or in part.

9. Indemnity

The Seller shall Indemnify the Buyer and its officers against any claims, damages or expenses payable by the Buyer to any third party/ies arising out of default or breach by the Seller of any of its undertakings, representations and obligations under this Contract.

10. Secrecy

In the context of the fulfillment of a contract, the Seller has to use all received information, business operations and documents exclusively in the Buyer's interest. The Seller is not allowed to give neither completely nor partly information to third parties and is obligated to secrecy.

11. Arbitration

In the event of any dispute or difference arising out of or relating to or concerning any matter connected with the Contract herein or the interpretation or implementation of any of the terms and conditions hereof the same shall be referred to Legal department at BENTELER Automotive in Paderborn, Germany.

12 Shipping Documents:

The Seller shall, within two (2) working days after the date of B/L (or dispatch note), send the following documents to the Buyer by courier:

1) Commercial Invoice in two originals and two copies indicating the Total Contract Price.
2) Full set of Clean on Board Ocean Bills of Lading in five originals and five copies.
3) Packing List in five originals and five copies.
4) Certificate of Quality and Quantity in five original and five copies.
5) Insurance Policy or Certificate in one original and four copies.
6) Certificate of Origin in one original and four copies.
7) Quarantine Certificate for wood packing material issued by the relevant authority or agency of the export country in one original and four copies in case of the Seller¡¯s using wooden packing

The Seller shall within two (2) working days send copies of item 1 to 7 by fax or email to the Buyer.

13 General information

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As far as no deviating agreements are made, our purchasing conditions apply to this contract. Prices in the order will be fixed to the a.m. level. Extra supplies and/or achievements will be recognized only if _ quoted by the Seller and _ released by Buyer's project manager and purchasing manager in writing before execution The contract shall be governed by the law of India exclusively. Place of jurisdiction is Pune, India.
Deviations from the agreements of the order require Buyer's written permission to be effective.
If individual parts of these purchasing conditions should be legally ineffective, the effectiveness of the remaining regulations is thereby not impaired. In this case, the permissible clause nearest to law and jurisdiction, which regulates the economic and legal sense in the nearest permissible way, replaces the ineffective clause.
All terms of Purchasing Conditions of BENTELER Automotive shall apply if not specified different in this contract.

PREPARED BY	APPROVED BY	AUTHORIZED SIGNATORY	
BUYER	PURCHASE HEAD INDIA	SELLER	

